



**GARDINER Agreement
Design Build / Fixed Price**

between

Brecksville-Broadview Heights City School District

and

Gardiner Service Company LLC

Dated as of

February 24, 2021

**Gardiner Contract No.
60-5770**

This GARDINER™ Agreement (hereinafter the "Agreement") is made and entered into as of February 24, 2021 (the "Effective Date") by and between Gardiner Service Company LLC (hereinafter "Gardiner") and Brecksville – Broadview Heights City School District (hereinafter "Customer") for the purpose of furnishing services as described in Exhibit B Scope of Services. Gardiner and Customer are hereinafter sometimes referred to individually as a "Party" or jointly as the "Parties".

ARTICLE 1 - THE SERVICES AND COMPENSATION

Section 1.01. Articles and Exhibits. This Agreement consists of Articles 1 through 8 and the following Exhibits, which are attached hereto and incorporated herein by this reference:

- Exhibit A: Payment Schedule
- Exhibit B: Scope of Services
- Exhibit B.1: Certificate of Substantial Completion and Acceptance
- Exhibit B.2: Certificate of Final Completion and Acceptance
- Exhibit C: Description of the Premises
- Exhibit D: Notice to Proceed

Section 1.02. Contract Price. Subject to the terms and conditions hereof, as payment for Gardiner's performance and furnishing of the Services, Customer shall pay or cause to be paid to Gardiner, pursuant to Section 1.05, the sum of Two million eight-hundred and seventy thousand Dollars (\$2,870,000.00) (the "Contract Price"), which Contract Price includes all applicable sales, consumer, use and similar taxes (excluding income taxes).

Section 1.03. Services and Maintenance.

(a) **Services.** Within two hundred and fourteen (214) days from Gardiner's receipt of the Notice to Proceed issued pursuant to Section 1.04, Gardiner shall have substantially completed performance of the Services defined in Exhibit B (hereinafter "Substantial Completion") at the Premises. Gardiner's obligation hereunder is limited to performing the Services as defined herein. Excluded from the Services are any modifications or alterations to the Premises (not expressly included within the Services as defined) that may be required by operation of the Americans with Disabilities Act or any other law or building code(s).

Section 1.04. Notice to Proceed; Financing.

☐ If this box is checked, Customer will not be financing payment of the Services with funds other than its own and will use its own funds to pay for the Services. Accordingly, upon execution of this Agreement by Gardiner, Customer's

execution of this Agreement shall constitute the Notice to Proceed to Gardiner.

☐ If this box is checked, Customer intends to finance payment of the Services with funds other than its own. Accordingly, Gardiner shall not perform, nor be required to perform, any of the Services until and unless Customer has closed on its financing of this Agreement (the "Financing Closing"), as evidenced by fully executed contract documents for financing of the Contract Price and funding of any escrow account provided for by the financing documents. Customer will achieve Financing Closing on or before _____, or such later date agreed to in writing by Gardiner. Within five (5) calendar days of the Financing Closing, Customer shall execute and issue a written Notice to Proceed (substantially in the form of Exhibit D hereto) to Gardiner, upon which event Gardiner will commence performance of the Services hereunder. In the event Customer does not achieve Financing Closing on or before the date specified in the preceding sentence, or such later date agreed to in writing by Gardiner, Gardiner may terminate this Agreement upon fourteen (14) calendar days prior written notice to Customer. Upon such termination of this Agreement, Gardiner shall have no further obligations to Customer hereunder; provided, however, that, notwithstanding such termination, Customer shall be obligated to immediately compensate Gardiner for the amount set forth in any Letter of Commitment, project development agreement, or comparable agreement between Customer and Gardiner.

Section 1.05. Services Payment Terms. Customer shall pay Gardiner or cause Gardiner to be paid for the Services as follows:

Initial Payment: Upon execution hereof, ("Initial Payment") Twelve.two percent (12.2%) of the Contract Price (for engineering, drafting, mobilization, and other costs) shall be due; and

Monthly Payments and Final Payment: In accordance with the dates and amounts on Exhibit A hereto, Gardiner will invoice for the Contract Price on a monthly basis for all materials and equipment delivered to the Premises (or, as applicable, to an off-site storage facility) and for all installation, labor and services performed during the billing period; Customer shall pay all amounts due within twenty (20) calendar days of its receipt of the invoice (the "Due Date").

Section 1.06. Notices and Changes of Address. All notices to be given by either party to the other shall be in writing and may be delivered in person, or may be sent by receipted courier, or postage prepaid certified or registered mail, addressed to the party for whom it is intended, at the addresses as follows:

If to Gardiner:

31200 Bainbridge Rd
Solon, Ohio 44139
Attention: Jerry Hixson

If to Customer:

Brecksville – Broadview Heights City Schools
6638 Mill Rd. Brecksville, Ohio 44141
Attention: Craig Yaniglos

or such other addresses as either party may hereinafter designate by notice to the other. All notices or other communications under this Agreement shall be in writing and may be delivered in person, or may be sent by receipted courier, or postage prepaid certified or registered mail, addressed to the party for whom it is intended, at the addresses set forth in this Agreement. Either party may change its address for notice by giving written notice to the other party of the change. Notice by courier, express mail, certified mail, or registered mail shall be deemed given on the date it is officially recorded as delivered by return receipt or equivalent and, in the absence of such record of delivery, it shall be rebuttably presumed to have been delivered on the third business day after it was deposited, first-class postage prepaid, in the mails.

Section 1.07. Term. Only applicable if a service agreement is part of this contract. The initial term of this Agreement shall commence as of the Effective Date and shall end on _____, unless earlier terminated pursuant to the provisions hereof. This Agreement shall be automatically renewed unless either Party provides written notice to the other Party no less than _____ (____) days prior to the end of the then current term of this Agreement.

Section 1.08. Customer's Authorized Representative(s). Customer designates the following individual(s), and any successors to the positions noted, as the representative(s) of Customer with authority to sign on behalf of the Customer (the "Authorized Representative") the Certificate of Substantial Completion and Acceptance, Certificate of Final Completion and Acceptance, and Guarantee reconciliation reports:

Authorized Representative:

Position/Title:

Customer may change any Authorized Representative by providing written notice to Gardiner (in accordance with Section 1.06) at least fourteen (14) calendar days prior to the effective date of the change. Such change shall only be effective with respect to acts occurring after the required notice.

Section 1.09. Fixed Price. Gardiner guarantees that the total compensation to Gardiner shall not exceed the Fixed Price as set forth on Exhibit E. Costs which would cause the Fixed Price to be exceeded shall be the responsibility of Gardiner and without reimbursement by Customer except when the cause is due to: (a) a material change in the scope or schedule of the Services for which Customer is responsible that materially affects Gardiner's costs or schedule, (ii)

Customer's negligence, or (iii) an Event of Force Majeure (as defined in Section 8.04).

ARTICLE 2 - PERFORMANCE

Section 2.01. Construction Procedures and Changes To Services. Gardiner shall supervise and direct the Services using its best skill and attention. Gardiner shall have exclusive control over construction means, methods, techniques, sequences and procedures. Gardiner shall at all times have the right to replace, delete or substantially alter any item of equipment or part of the Services, correct any work, revise any procedures included in this Agreement, or take any other energy saving actions, provided, however, that Gardiner shall obtain Customer's prior consent to substantial deviations from the original scope of Services, said consent not to be unreasonably withheld or delayed.

Section 2.02. [Intentionally Omitted].

Section 2.03. Final Completion. Upon Customer's receipt of written notice from Gardiner that the Services are ready for final inspection and acceptance, Customer and Gardiner shall inspect the Services and determine whether the same have been performed in accordance with this Agreement. If Customer considers the Services complete and performed in accordance with this Agreement, Customer shall issue a Certificate of Final Completion and Acceptance, substantially in the form attached hereto as Exhibit B.2, to be executed by the Authorized Representative of Customer. In the event Gardiner presents a Certificate of Final Completion and Acceptance to Customer for execution and, within fourteen (14) calendar days from the date noted in the Certificate as the date of such presentation, Customer fails to deliver an executed original of the Certificate to Gardiner and does not provide to Gardiner written objections to issuance of the Certificate, identifying the specific parts of the Services the Customer believes have not been completed and providing specific facts in support of Customer's belief that the Services have not been finally completed, the Date of Final Completion shall be the date noted in the Certificate as the date the Certificate was submitted to Customer.

Section 2.04. Delays. If Gardiner is delayed in the commencement or completion of any part of the Services due to an Event of Force Majeure (defined in Section 8.04), or due to Customer's action(s) or Customer's failure to perform its obligations under this Agreement or to cooperate with Gardiner in the timely performance of the Services, then Gardiner will notify Customer in writing of the existence, extent of, and reason(s) for such delay(s). Gardiner and Customer shall extend the Term for such reasonable time as they shall agree and, if Gardiner's cost for furnishing the Services is increased as a result, the Contract Price shall be increased by Change Order by the amount of Gardiner's additional costs.

Section 2.05. Equipment Location and Access. Customer shall provide, without charge, a mutually satisfactory location or locations for the installation and operation of the equipment and the performance of the installation work, including sufficient areas for staging, mobilization, and storage. Customer shall provide access to the Premises for Gardiner and its contractors or subcontractors during regular business hours, or such other hours as may be requested by Gardiner

and acceptable to Customer, to install, adjust, inspect, and correct the installation work. Gardiner's access to correct any emergency condition shall not be restricted by Customer.

Section 2.06. Permits and Governmental Fees. Gardiner shall secure (with Customer's assistance) and pay for building and other permits and governmental fees, licenses, and inspections necessary for proper performance and completion of the Services and which are legally required when bids from Gardiner's subcontractors are received, negotiations thereon concluded, or the effective date of a relevant Change Order, whichever is later. Customer is responsible for necessary private approvals, easements, assessments and charges for construction, use or occupancy of permanent structures or for permanent changes to existing facilities.

Section 2.07. Utilities During Construction. At no cost to Gardiner, Customer shall provide and pay for water, heat, and other utilities consumed by Gardiner during performance of the Services hereunder. Gardiner shall install and pay the cost of any temporary facilities not already in existence that will be required during construction for accessing such water, heat, and other utilities.

Section 2.08. Concealed or Unknown Conditions. Gardiner shall promptly notify Customer if it encounters the following conditions at the Premises, prior to significantly disturbing the same: (i) subsurface or otherwise concealed physical conditions or (ii) unknown physical conditions of an unusual nature that differ materially from those conditions ordinarily found to exist and generally recognized as inherent in construction activities of the type and character as the Services herein. If such conditions cause an increase in Gardiner's cost of, or time required for, performance of any part of the Services: (a) Gardiner and Customer shall agree, by Change Order, on how to proceed and the extent of any adjustment to the time required for performance of the Services and to the Contract Price, in light of the differing conditions and any adjustments that may be required to the Guarantee; or (b) either party may terminate this Agreement by delivery of written notice declaring termination, effective immediately pursuant to Section 3.05.

Section 2.09. Damage to Equipment; Casualty or Condemnation of Premises. If any fire, flood, other casualty, or condemnation renders a majority of the Premises incapable of being occupied or destroys a substantial part of the area(s) within which the Services is/are to be performed; Gardiner may terminate this Agreement, effective immediately, by delivery of a written notice to Customer pursuant to Section 3.05. If any significant item of the equipment furnished hereunder is irreparably damaged by the negligence or willful misconduct of an employee, agent or invitee of Customer, or is destroyed or stolen, and if Customer fails to repair or replace said item within a reasonable period of time agreed to by Gardiner, Gardiner may terminate this Agreement, effective immediately, pursuant to Section 3.05.

ARTICLE 3 - CUSTOMER'S OBLIGATIONS

Section 3.01. Access to Premises. Customer shall provide Gardiner with access to the Premises, with prior notice to Customer, to inspect for Gardiner's benefit the component

parts of the Services installed on the Premises and/or to validate Customer's performance of its responsibilities.

Section 3.02. Representations and Warranties of Customer. Customer hereby warrants and represents to Gardiner that:

(a) Customer has provided Gardiner with all records heretofore requested by Gardiner and the information set forth therein is, and all information in other records to be subsequently provided pursuant to this Agreement will be, true and accurate in all material respects except as may be disclosed to Gardiner by Customer in writing;

(b) Customer presently intends to continue to use the Premises in a manner similar to its present use, except as may have been disclosed to Gardiner by Customer in writing;

(c) No part of the systems controlled by Gardiner will be placed in a permanent "on" operating mode or manually controlled and, during the Term of this Agreement, Customer shall permit only Gardiner personnel or other qualified providers to repair, adjust or program equipment, systems, and/or controls, except in the event of an emergency, in which event Customer may remedy the emergency and shall notify Gardiner as soon as possible of the existence of the emergency and measures taken by Customer;

(d) Customer has disclosed in writing to Gardiner the existence and location of all known or suspected asbestos and other Hazardous Materials (defined in Article 5) on the Premises;

(e) Customer will provide Gardiner with copies of any successor or additional contracts for management or servicing of preexisting equipment that may be executed from time to time hereafter within ten (10) days after execution thereof and information or services under Customer's control shall be furnished promptly by Customer;

(f) the execution, delivery and performance by Customer of this Agreement does not violate any provision of law and does not conflict with or result in a breach of any order, writ, injunction or decree of any court or governmental instrumentality, domestic or foreign, or Customer's respective charter or by-laws or create a default under any agreement, bond, note or indenture to which Customer is a party or by which Customer is bound or to which any of Customer's property is subject; and Customer has no knowledge of any facts or circumstances that, but for the passage of time, would materially, adversely affect either Party's ability to perform its respective obligations hereunder and, if Customer is a governmental entity or instrumentality thereof, Customer has complied with all laws and regulations relative to bidding or procurement of the Services hereunder;

(g) this Agreement has been duly authorized, executed and delivered by Customer, and constitutes the valid and legally binding obligation of Customer, enforceable in accordance with its terms, except as may be limited by bankruptcy, insolvency, reorganization or other laws or equitable principles of general application relating to or affecting the enforcement of creditor's rights and remedies;

(h) Customer shall notify Gardiner within seventy-two (72) hours of Customer's receipt of actual or constructive

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notice of (1) any material malfunction in the operation of the equipment installed or equipment affected by the Services provided pursuant to this Agreement and/or (2) any interruption or alteration of the energy supply to the Premises; and

(i) Customer is the fee owner of the Premises and the real estate upon which the Premises are located.

Section 3.03. Customer Default. Each of the following events or conditions shall constitute a default by Customer and shall give Gardiner the right to, without an election of remedies, immediately terminate this Agreement pursuant to section 3.05.

(1) Any failure by Customer to pay or cause to be paid amounts due Gardiner more than thirty (30) days after the date of the invoice therefor;

(2) Any representation or warranty furnished by Customer in this Agreement is false or misleading in any material respect when made;

(3) Any default by Customer under any instrument or agreement (i) related to the financing or leasing of all or any part of the Services or equipment hereunder and/or (ii) granting to any person or entity a security interest in and to the equipment to be installed or furnished hereunder;

(4) Any failure by Customer to perform or comply with any material term or condition of this Agreement, including breach of any covenant contained herein, provided that such failure continues for thirty (30) days after written notice to Customer demanding that such failure be cured or, if cure cannot be effected in such thirty (30) days, Customer fails to promptly begin to cure and diligently proceed to completion thereof;

(5) Any failure by Customer to pay as and when due the Maintenance Price and/or any failure by Customer to perform or comply with any material term or condition of Exhibit G; or

(6) The commencement of any voluntary or involuntary proceedings in bankruptcy or receivership by or against Customer, Customer shall become insolvent, make a general assignment for the benefit of creditors, or Customer shall fail to pay its debts as and when they become due.

Section 3.04. Gardiner Default. Each of the following events or conditions shall constitute a default by Gardiner and shall give Customer the right, upon thirty (30) calendar days prior written notice to Gardiner, to terminate this Agreement by delivery of written notice declaring termination, after which, if Gardiner has not cured the default within such thirty (30) day period, Customer may take possession of the site together with all materials thereon, and move to complete the Services itself expediently. If the unpaid balance of the Contract Price exceeds the expense of finishing the Services, the excess shall be paid to Gardiner, but if the expense exceeds the unpaid balance, Gardiner shall pay the difference to Customer upon demand by Customer:

(1) Any representation or warranty furnished by Gardiner in this Agreement is false or misleading in any material respect when made;

(2) Any failure by Gardiner to perform or comply with any material term or condition of this Agreement, including breach of any covenant contained herein, provided that such failure continues for thirty (30) days after written notice to Gardiner demanding that such failure be cured or, if cure cannot be effected in such thirty (30) days, Gardiner fails to promptly begin to cure and diligently proceed to completion thereof; or

(3) The commencement of any voluntary or involuntary proceedings in bankruptcy or receivership by or against Gardiner, Gardiner becomes insolvent, or Gardiner makes a general assignment for the benefit of creditors.

Section 3.05. Termination. Termination of this Agreement will be effectuated by delivery of ten (10) calendar days advance written notice by the Party seeking termination declaring termination, upon which event a) Customer shall be liable to Gardiner for all Services furnished to date and any damages sustained by Gardiner, including lost profits and the price of any specially manufactured items, whether in production or delivered; and b) Gardiner shall have no further obligation to Customer under this Agreement. Any termination under this Agreement not based on a default provision shall be deemed a termination for convenience.

ARTICLE 4 - INSURANCE

Section 4.01. Gardiner's Liability Insurance. Gardiner shall purchase from and maintain, without interruption from the commencement of the Services throughout the Term, a Commercial General Liability policy, Worker's Compensation and Employer's Liability policy and Commercial Automobile Liability policy, through a company or companies rated A VIII or better by A.M. Best Company.

Section 4.02. Customer's Liability and Property Insurance. (a) Customer shall be responsible for purchasing and maintaining Commercial General Liability Insurance of the type and amount Customer deems necessary and appropriate.

(b) Customer shall purchase and maintain (until the later of the date of issuance of the Certificate of Final Completion and the date of Customer's Final Payment) property insurance for the installation work in progress at least in an amount equal to the Contract Price, as the same may be adjusted from time to time, for the installation work (including the equipment) on a replacement cost basis from an insurer reasonably acceptable to Gardiner. Such property insurance shall include the interests of Customer, Gardiner, and its subcontractors (at whatever tier) as additional insureds as their interests may appear. The property insurance purchased by Customer shall be on an all-risk policy form. Customer, for itself and its insurance carriers, hereby waives all rights of subrogation against Gardiner and any of its subcontractors, agents, employees, and officers with respect to property insurance and any other insurance coverages maintained by Customer.

(c) A loss insured under Customer's property insurance shall be adjusted by Customer's Insurer as a fiduciary and made payable to Customer as a fiduciary for the insureds, as their respective interests may appear, subject to requirements of any applicable mortgage clause. Gardiner shall pay its subcontractors their just shares of insurance proceeds

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received by Customer and remitted to Gardiner, and, by appropriate agreements, written where legally required for validity, shall require said subcontractors to make payments to their subcontractors in a similar manner. In its fiduciary role, Customer shall have the power to negotiate and settle a loss with insurers; provided, however, that at least ten (10) days prior to agreeing to the proposed settlement, Customer shall advise the parties in interest in writing of the terms of the same and the parties in interest shall have seven (7) days thereafter to object in writing to the proposed adjustment or settlement; if such objection is made, Customer shall not enter into or agree to the proposed adjustment or settlement and the parties shall proceed to resolve the disagreement.

Section 4.03. Customer's Loss of Use/Business Interruption Insurance. Customer may purchase and maintain insurance to protect against loss of use of Customer's property or business interruption due to fire or other commonly insured hazards, however such fire or hazards may be caused. Customer acknowledges that Gardiner is not required to purchase or maintain such insurance against the loss of use of Customer's property or business interruption. CUSTOMER HEREBY WAIVES ALL CLAIMS AND CAUSES OF ACTION IT MAY HAVE AGAINST GARDINER AND ANY OF ITS SUBCONTRACTORS, AGENTS, EMPLOYEES, AND OFFICERS FOR LOSS OF USE OF CUSTOMER'S PROPERTY OR BUSINESS INTERRUPTION, WHETHER INSURED OR NOT, INCLUDING CONSEQUENTIAL, INCIDENTAL, SPECIAL, OR OTHER DAMAGES DUE TO SUCH HAZARDS, REGARDLESS OF CAUSE.

Section 4.04. Evidence of Insurance. Customer and Gardiner shall furnish to the other certificate(s) of insurance prior to commencement of performance of any Services, evidencing the coverages and limits required to be maintained under this Agreement. Such certificate(s) shall contain a provision that coverages afforded under the policies will not be canceled or allowed to expire until at least thirty (30) days prior written notice has been given to the other party. The certificate(s) shall name the other party as an "additional insured" to the extent of the indemnity obligation assumed by the insured party under this Agreement. Neither the procurement nor maintenance of any type of insurance by Customer shall in any way be construed or deemed to limit, waive, or release Customer from any of the obligations and risks of Customer under this Agreement, or to be a limitation on the nature and extent of such obligations and risks.

Section 4.05. Bond. Gardiner shall provide a payment and performance bond in the form and as found in Ohio Revised Code Section 153.571

ARTICLE 5 - HAZARDOUS MATERIALS

Section 5.01. Asbestos And Hazardous Materials. Except as expressly stated in Exhibit B, Gardiner's Services expressly exclude any work connected or associated with Hazardous Materials. Hazardous Material means any pollutant, contaminant, toxic or hazardous substance, material or waste, any dangerous, potentially dangerous, noxious, flammable, explosive, reactive or radioactive substance, material or waste, urea formaldehyde, asbestos, asbestos-containing materials ("ACM's"), polychlorinated biphenyl ("PCB"), and any other substance, the manufacture, preparation, production, generation, use, maintenance, treatment, storage, transport, disposal, handling, or ownership of which is regulated, restricted, or prohibited, by any federal, state, or local statute, law, ordinance, code, rule or regulation now or at any time hereafter in effect, and as may be amended from time to time, including but not limited to, the Comprehensive Environmental Response, Compensation, and Liability Act (42 U.S.C. §§ 9601 et seq.), the Hazardous Materials Transportation Act (49 U.S.C. §§ 1801 et seq.), the Resource Conservation and Recovery Act (42 U.S.C. §§ 6901 et seq.), the Federal Water Pollution Control Act (33 U.S.C. §§ 1251 et seq.), the Clean Air Act (42 U.S.C. §§ 7401 et seq.), the Toxic Substances Control Act, as amended (15 U.S.C. §§ 2601 et seq.), and the Occupational Safety and Health Act (29 U.S.C. §§ 651 et seq.).

Gardiner shall not perform any identification, abatement, cleanup, removal, transport, treatment, storage or disposal of Hazardous Materials on the Premises. Customer warrants and represents that, except as expressly, and by reference to this Section, set forth in Exhibit C (Description of Premises) or Exhibit F (Hazardous Materials), there are no Hazardous Materials on the Premises in areas within which Gardiner will be performing any part of the Services or Customer has disclosed to Gardiner the existence and location of any Hazardous Materials in all areas within which Gardiner will be performing any part of the Services. Gardiner's responsibility, if any, for any Hazardous Materials, shall be limited to and as expressly set forth in Exhibit F and Customer shall, at all times, be and remain the owner and generator of any and all Hazardous Materials on the Customer's Premises and responsible for compliance with all laws and regulations applicable to such Hazardous Materials.

Should Gardiner become aware of or suspect the presence of Hazardous Materials in the course of performing the Services that are not disclosed in Exhibits B, C or F, or which present or may present a hazard to or endanger health welfare or safety, Gardiner shall have the right to immediately stop work in the affected area and shall notify Customer. Customer will be responsible for taking any and all action necessary to remove or render harmless the Hazardous Materials in accordance with all applicable laws and regulations. Gardiner shall be required to resume performance of the Services in the affected area only in the absence of Hazardous Materials or when the affected area has been rendered harmless; if the area has not been or cannot be rendered harmless within thirty (30) days of discovery of the Hazardous Material, Gardiner may terminate this Agreement pursuant to Section 3.05. Customer shall compensate Gardiner for any additional costs incurred by Gardiner as a result of work stoppage, including demobilization and remobilization. In addition to any other

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indemnity obligation of Customer to Gardiner, to the maximum extent permitted by law, Customer shall indemnify, defend, and hold harmless Gardiner, its officers, directors, beneficiaries, shareholders, partners, agents, representatives, and employees (collectively referred to as "Gardiner" for purposes of this Article 5) and Gardiner's subcontractors from all fines, suits, actions, claims, penalties, and proceedings of every kind, and all costs associated therewith (including attorneys' and consultants' fees) arising out of or in any way connected with or related to: (1) any leak, deposit, spill, discharge, or release or disposal of Hazardous Materials in connection with the performance of this Agreement, except to the extent such Hazardous Materials were brought onto the Premises by Gardiner; and/or (2) Customer's failure to identify and disclose Hazardous Materials and to fully comply with all federal, state, and local statutes, laws ordinances, codes, rules and regulation now or at any time hereafter in effect regarding Hazardous Materials.

ARTICLE 6 - INDEMNIFICATION AND LIMITATION OF LIABILITY

Section 6.01. Indemnification. Gardiner agrees to indemnify and hold Customer, and Customer's consultants, agents and employees harmless from all claims for bodily injury and property damages to the extent such claims result from or arise under Gardiner's or lower tier subcontractor's gross negligence or willful misconduct in its performance of the Services.

Section 6.02. Limitation of Liability.

NOTWITHSTANDING ANY PROVISION TO THE CONTRARY, NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY SPECIAL, INCIDENTAL, CONSEQUENTIAL (INCLUDING WITHOUT LIMITATION LOST REVENUE OR PROFITS) OR PUNITIVE DAMAGES REGARDLESS OF WHETHER SUCH LIABILITY ARISES FROM BREACH OF CONTRACT, TORT OR ANY OTHER THEORY. IN NO EVENT SHALL GARDINER BE LIABLE FOR ANY DAMAGES (WHETHER DIRECT OR INDIRECT) RESULTING FROM MOLD, FUNGUS, BACTERIA, MICROBIAL GROWTH, OR OTHER CONTAMINATES OR AIRBORNE BIOLOGICAL AGENTS.

ARTICLE 7 - WARRANTY

Section 7.01. Workmanship and Equipment Warranty.

(a) Gardiner warrants to the Customer that materials and equipment furnished under this Agreement ("Gardiner's Material and Equipment") will be of good quality and new unless otherwise required or permitted by this Agreement. Gardiner's Material and Equipment and the Services are hereinafter jointly referred to, for purposes of this Article 7, as the "Work". The Work will be free from defects not inherent in the quality required or permitted. The Work will perform all functions for which it is intended, and the Work will conform to the requirements of this Agreement. Work not conforming to these requirements may be considered defective.

(b) Gardiner agrees to correct all Work which proves to be defective in design, workmanship or materials within a period of one (1) year from the date of Final Completion of the Services (the "One Year Period"). The guarantee provided in this Section 7.01 does not establish a period of limitation with

respect to Gardiner's other obligations under this Agreement, has no relationship to the time within which the Customer may seek to enforce this Agreement, and shall be in addition to, and not in limitation of, any other guarantee, warranty or remedy provided by law, a manufacturer or this Agreement.

(c) If defective Work becomes apparent within the One Year Period, the Customer shall notify Gardiner in writing. Within five (5) days of receipt of said notice, Gardiner shall visit the Premises with one or more representatives of the Customer to determine the extent of the defective Work. Gardiner shall promptly repair or replace the defective Work, including all adjacent Work damaged as a result of such defective Work or as a result of remedying the defective Work. If the defective Work is considered by the Customer to be an emergency, Customer may require Gardiner to visit the Premises within one (1) business day of receipt of said notice. Gardiner shall be fully responsible for the cost of temporary materials, facilities, utilities or equipment required during the repair or replacement of the defective Work.

(d) If Gardiner does not promptly repair or replace the defective Work, the Customer may repair or replace such defective Work and charge the reasonable cost thereof to Gardiner or Gardiner's surety. Work which is repaired or replaced by Gardiner shall be subject to the Customer's inspection and acceptance and shall be guaranteed by Gardiner for one (1) year from the date of acceptance of the corrective Work by the Customer.

(e) In addition to the warranty set forth above, Gardiner shall, at the Customer's request, assign to the Customer any and all manufacturer's or installer's warranties for equipment or materials not manufactured by Gardiner and provided as part of the Work, to the extent that such third-party warranties are assignable and extend beyond the one (1) year guarantee set forth in Section 7.01(b). Gardiner shall, prior to installing material and/or equipment which is subject to a warranty, provide a copy of the warranty to the Customer.

THE WARRANTY AND LIABILITY SET FORTH IN THIS SECTION ARE IN LIEU OF ALL OTHER WARRANTIES AND LIABILITIES, WHETHER IN CONTRACT OR IN NEGLIGENCE, EXPRESS OR IMPLIED, IN LAW OR IN FACT, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR USE OR FITNESS FOR A PARTICULAR PURPOSE. IN NO EVENT SHALL GARDINER BE LIABLE FOR ANY SPECIAL, INCIDENTAL, CONSEQUENTIAL (INCLUDING WITHOUT LIMITATION LOST PROFITS), OR PUNITIVE DAMAGES. NO REPRESENTATION OR WARRANTY OF MERCHANTABILITY OR FITNESS OF PURPOSE IS MADE REGARDING PREVENTION BY THE SCOPE OF SERVICES, OR ANY COMPONENT THEREOF, OF MOLD, FUNGUS, BACTERIA, MICROBIAL GROWTH, OR ANY OTHER CONTAMINATES. GARDINER SPECIFICALLY DISCLAIMS ANY LIABILITY IF THE SCOPE OF SERVICES OR ANY COMPONENT THEREOF IS USED TO PREVENT OR INHIBIT THE GROWTH OF SUCH MATERIALS.

ARTICLE 8 - GENERAL PROVISIONS

Section 8.01. Assignment. Customer may not assign, transfer, or convey this Agreement, or any part hereof, or its right, title or interest herein, without the written consent of GARDINER Agreement 12-09-09, Gardiner Project No.: 60-5770

Gardiner, which consent shall not be unreasonably withheld or delayed. Gardiner shall not assign, transfer or convey this Agreement without Customer's consent, which consent shall not be unreasonably withheld or delayed. Subject to the foregoing, this Agreement shall be binding upon and inure to the benefit of the Parties' respective successors and assigns.

Section 8.02. Applicable Law and Jurisdiction. This Agreement is made and shall be interpreted and enforced in accordance with the laws of the State of Ohio. Customer hereby consents and submits to the personal jurisdiction of the courts of Cuyahoga County, Ohio and of the United States District Court for the Northern District of Ohio.

Section 8.03. Complete Agreement. This Agreement and the Exhibits attached hereto, together with any documents expressly incorporated herein by reference, shall constitute the entire agreement between both parties regarding the subject matter hereof. There are no agreements, understandings, or covenants between the parties of any kind, expressed or implied, oral or otherwise pertaining to the Services that have not been set forth in this Agreement. Any Proposals furnished by Gardiner prior to execution of this Agreement were for negotiation purposes only and shall not constitute legally binding commitments. This Agreement may not be amended, modified or terminated except by a writing signed by the Parties hereto.

Section 8.04. Force Majeure. Neither party shall be considered to be in default hereunder when a failure of performance (other than Customer's obligation to make payment to Gardiner) is due to an Event of Force Majeure. An "Event of Force Majeure" shall mean any cause or event beyond the control of the Party. Without limiting the foregoing, "Event of Force Majeure" includes: acts of God; acts of terrorism, war or the public enemy; flood; earthquake; tornado; storm; fire; civil disobedience; pandemic insurrections; riots; labor disputes; labor or material shortages; sabotage; restraint by court order or public authority (whether valid or invalid), and action or non-action by or inability to obtain or keep in force the necessary governmental authorizations, permits, licenses, certificates or approvals if not caused by the fault of the Party. If either Party is rendered unable to fulfill any of its obligations under this Agreement by reason of an Event of Force Majeure it shall give prompt written notice of such fact to the other Party and the obligated Party's obligations shall be suspended until removal of the Event of Force Majeure. If either Party shall be unable to carry out any material obligation under this Agreement due to Event of Force Majeure, this Agreement shall, at the election of either Party: (i) remain in effect but the Parties' obligations shall be suspended until the uncontrollable event terminates; or (ii) be terminated upon ten (10) calendar days notice to the other party, pursuant Section 3.05.

Section 8.05. Further Documents. The Parties shall timely execute and deliver all documents and perform all further acts that may be reasonably necessary to effectuate the provisions of this Agreement.

Section 8.06. Severability. If any term or conditions of this Agreement is invalid, illegal or incapable of being enforced by any rule of law, all other terms and conditions of this Agreement will nevertheless remain in full force and effect so long as the economic or legal substance of the transaction

contemplated hereby is not affected in a manner adverse to any Party hereto. Upon any such determination of invalidity, illegality or unenforceability, the Parties hereto shall negotiate in good faith to modify this Agreement so as to affect the original intent of the Parties as closely as possible in an acceptable manner, to the end that the transactions contemplated by this Agreement are consummated to the extent possible.

Section 8.07. Signatures in Counterpart. This Agreement may be executed in several counterparts, each of which when executed shall be deemed to be an original, but all together shall constitute but one and the same Agreement. A facsimile or electronic copy hereof shall suffice as an original.

Section 8.08. Neutral Interpretation. The form of this Agreement has been prepared initially by Gardiner. However, the parties acknowledge that this is a negotiated Agreement and, in the event of any dispute over its meaning or application, this Agreement shall be interpreted fairly and reasonably and neither more strongly for, nor more strongly against, either Party.

Section 8.09. Disputes. The Parties will at all times act in good faith in their dealings under this Agreement and they will, prior to the commencement of any formal dispute resolution process, meet and confer regarding the dispute and its resolution.

Section 8.10. Tax Incentives. To the extent permitted by law, Customer agrees to allocate to Gardiner, as designer of the Project, such tax credits and deductions attributable to the Project. This includes but is not limited to the energy credit placed into effect through the Energy Policy Act of 2005 (EPACT) – §179D(c) (l) and (d) of the Internal Revenue Code.

IN WITNESS WHEREOF, the duly authorized representatives of the Parties have each executed this Agreement, effective as of the date first above written.

Gardiner Service Company LLC

By: _____

Its: _____

Date: _____

(Customer)

By: _____

Its: _____

Date: _____

Gardiner’s state contractor’s license number: